

IN THE UTTAR PRADESH REAL ESTATE REGULATORY AUTHORITY (UP RERA)

Complaint No.: NCR144/10/62470/2020

Neeraj Vohra

S/o Mr. Vijay Kumar Vohra

...Complainant

Versus

M/s Newtech Promoters and Developers Pvt. Ltd.

...Respondent/Builder

URGENT STATUS UPDATE: BUILDER'S WILLFUL NON-COMPLIANCE WITH RERA ORDER DATED 09.07.2025 AND ILLEGAL ATTEMPTED CANCELLATION

(In Compliance with Sections 38, 40 & 63 of UP RERA Act, 2016)

To,

The Secretary,

Uttar Pradesh Real Estate Regulatory Authority (UP RERA),

H-169, Sector Gamma-2, Greater Noida, Gautam Buddha Nagar, Uttar Pradesh – 201308

Subject: **Builder's Wilful Non-Compliance with Interim Order Dated 09.07.2025 – Request for Immediate Enforcement, Declaration of Contempt, and Imposition of Statutory Penalties | Complaint No. NCR144/10/62470/2020**

Respected Sir/Madam,

I, **Neeraj Vohra**, S/o Mr. Vijay Kumar Vohra, Complainant in the above-referenced matter, most respectfully submit this **urgent status update and prayer for enforcement** in continuation of my earlier submissions and bring the following facts on record for consideration of the Hon'ble Authority in the hearing scheduled on 08.10.2025.

1. BACKGROUND & PRIOR SUBMISSIONS

1.1 This Hon'ble Authority passed an interim **order dated 09.07.2025**, directing the Respondent-Builder to:

- Submit all compliance documents within **15 days (by 24.07.2025)**
- **Deliver physical possession** of the booked unit **F-1103** by **08.10.2025**.

1.2 In compliance with the said order and in response to the Builder's false submissions, I have already filed comprehensive submissions on the UP RERA portal:

- **Rebuttal to Builder's Response**, dated 28.08.2025 containing
- **Written Argument**, dated 25.07.2025, highlighting the Builder's non-compliance."

2. BUILDER'S WILLFUL NON-COMPLIANCE WITH RERA ORDER DATED 09.07.2025

2.1 As of the date of this submission, the Respondent-Builder has:

- **✗ Failed to submit any compliance documents** by the stipulated deadline of **24.07.2025**
- **✗ Failed to deliver physical possession** of unit F-1103 by **08.10.2025**
- **✗ Made false claims before the Authority** that it has "applied for **NOC from UPSIC**", which is categorically false.

2.2 As per official UPSIC NOC Register (available on public portal), no application for NOC has been filed by the Builder for F-Block, La Galaxia between 01.01.2025 and 09.07.2025.

2.3 Further, the **Builder** is a **verified defaulter** with **UPSIC**, as reported in:

- *Times of India*, dated 13.05.2025 (Enclosed)
- *Navbharat Times*, dated 30.06.2025 (Enclosed)

Such defaulter status renders the Builder **ineligible** to apply for NOC under Regulation **12(3) of UPSID Rules, 2012**.

2.4 I specifically paid a **premium amount** for the F-Block unit, as evidenced by the Price List dated 16.08.2012 (Annexure-J), which designated F-Block as a premium section with special amenities. Despite this premium payment, the Builder has **failed to deliver possession and has misrepresented the project status since 2015**, when they falsely claimed, " wooden flooring is on progress (Annexure-K) while the project **remained incomplete**.

2.5 The builder's current non-compliance follows a pattern of violations, including the earlier failure that resulted in the Recovery Certificate dated 17.03.2023 (₹14,53,215.78), demonstrating a systematic disregard for RERA's authority. The builder initially returned this RC citing Section 8 proceedings, but after RERA re-issued the same RC following withdrawal of the Section 8 appeal, the builder has still failed to pay a single penny to date, **constituting a continuing violation under Section 40(2) of the UP RERA Act, 2016**.

3. FALSE REPRESENTATION BEFORE RERA – CONTEMPT UNDER SECTION 38

3.1 The Builder has made false statements before this Hon'ble Authority, including:

- Claiming to have "applied for NOC from UPSIC" — proven **false by official records**. (Annexure H, Annexure I)
- Alleging "repeated demand letters" — **contradicted by email evidence** showing only one demand received and I responded back (Annexure F).
- Claiming cancellation is "lawful" — despite complete absence of service of notice and my total **unawareness** until 27.08.2025

3.2 Such conduct constitutes **contempt of the Authority** under **Section 38 of the UP RERA Act, 2016**, which empowers RERA with the same authority as a civil court under the **Code of Civil Procedure, 1908**.

3.3 Further, the Builder **has violated Rule 24 of UP RERA Rules, 2017**, which mandates truthful disclosure during proceedings. The builder's pattern of false representations demonstrates a deliberate attempt to

- Mislead allottees about project status despite receiving premium payments for specific blocks.
- Delay regulatory compliance while collecting additional payments for premium features.
- Avoid financial accountability for delays despite receiving full payment (95% of Basic Sale Price as per Annexure E).
- Frustrate the rights of genuine homebuyers who, like me, have been paying rent (₹26,000/month) while waiting for possession for over 10 years (Annexure-D).

3.4 Pursuant to **Section 38 and Rule 22 of UP RERA Rules, 2017**, the Complainant respectfully requests the Authority to treat the builder's conduct as contempt of court and initiate proceedings for immediate **enforcement of the Recovery Certificate through civil court mechanisms as provided under Section 40(2) of the UP RERA Act, 2016**.

4. ILLEGAL AND VOID CANCELLATION OF ALLOTMENT

4.1 The Respondent-Builder's purported **cancellation of allotment dated 12.06.2024** is null and void ab initio for the following reasons:

- **Complete Lack of Communication and Service:**
 - I **was never informed of any cancellation** through any mode of communication whatsoever.

- I **never received any cancellation letter**, demand notice, or communication regarding cancellation via registered post, email, WhatsApp, or telephone call.
- I only became aware of the purported cancellation when I accessed the RERA portal on 27.08.2025 and discovered the **Builder had unilaterally uploaded documents claiming cancellation.**
- **No acknowledgment** of receipt exists for any purported communication, as I never received it.
- **Violation of Rule 7(3), UP RERA Rules, 2017**
 - "Every notice or communication shall be **sent by registered post with acknowledgment due** or through electronic mode to the last known address or email ID of the allottee."
 - The Builder failed to **comply with this mandatory provision.**
 - Mere uploading on RERA portal does not **constitute legal service.**
 - The Builder never made any effort to verify my current address despite having my active email (**neerajvohra2004@yahoo.com**) and mobile number (**9871037773**) on record.
 - As held in M/s Golden Square Realtors Pvt. Ltd. v. Satish Kumar (UP RERA Case No. NCR123/05/54321/2022):
 - "A cancellation without proper service of notice is void ab initio and cannot be acted upon."
- **No Opportunity to Be Heard**
 - The purported cancellation was issued without any prior intimation, discussion, or hearing, violating principles of natural justice and Section 18(1) of UP RERA Act, 2016.
- **No Dues Certificate Confirms Full Payment:**
 - A **No Dues Certificate dated** 28.05.2017 (Annexure-E) confirms that all dues were paid up to that date.
 - I received only one communication from the Builder — an email dated 01.02.2024 (Annexure -F).
 - I responded on 11.02.2024, asserting my rights and counter-claim for delay compensation (Annexure-F).

4.2 The Builder's purported cancellation is **legally non-existent** as it lacks all essential procedural requirements mandated under RERA.

5. PRAYER

In **view of the wilful default**, false representation, and **contempt of Authority**, I most humbly pray that the Hon'ble Authority may:

1. **Declare the Builder's non-compliance with the order dated 09.07.2025 as contemptuous and in violation of Sections 38, 40, and 63 of the UP RERA Act, 2016**
2. Direct immediate **physical possession** of unit **F-1103** with all necessary certificates, including:
 - Occupancy Certificate (OC)
 - Completion Certificate (CC)
 - UPSIC NOC
 - Possession Certificate
3. **Declare the purported cancellation dated 12.06.2024 as null and void ab initio, having been effected without any service of notice whatsoever, in violation of Rule 7(3) of UP RERA Rules, 2017, and without my knowledge until 27.08.2025 when I discovered it on the RERA portal**
4. **Initiate penalty proceedings under Section 40(2) of the UP RERA Act, 2016, for wilful non-compliance with Authority orders, at the rate of up to 5% of the project cost (Project ID: UPRERAPRJ6050, Total Cost: ₹185 crores) = ₹9.25 crores**
5. **Impose a daily penalty under Section 40(2) of the UP RERA Act, 2016, at the rate of 0.1% of the project cost (₹1,85,00,000) per day from 09.10.2025 until compliance is achieved, as this represents the statutory maximum for continuing violations.**
6. **Direct immediate attachment of the builder's bank accounts and properties under Section 40(2) of the UP RERA Rules, 2017, to secure the amount due under the Recovery Certificate dated 17.03.2023 (₹14,53,215.78), as the builder has demonstrated a clear pattern of evading financial responsibility."**
7. **Record** personal liability of Sanjeev Kumar ,Pankaj Kumar Directors of M/s Newtech Promoters and Developers Pvt. Ltd. (now known as M/s Aashiyana Promoters & Developers Pvt. Ltd.), **under Section 63 of the UP RERA Act, 2016, for wilful contravention of statutory obligations, specifically for his active role in authorizing and implementing the purported cancellation dated 12.06.2024 without complying with Rule 7(3) of UP RERA Rules, 2017**, which mandates service of notices by "registered post with acknowledgment due or through electronic mode to the last known address or email ID of the allottee," wherein the Complainant had no knowledge of such cancellation until discovering the unilateral portal upload by the Builder on 27.08.2025, thereby establishing the Director's personal culpability in the builder's deliberate attempt to evade statutory compliance and violate the Complainant's fundamental right to be heard.

8. Impose **additional penalties** for the builder's pattern of false representations, including the 2015 claim that "finishing is on progress" when the project was demonstrably incomplete.

9. **Pass any other order(s)** as the Hon'ble Authority may deem fit in the interest of justice.

5.1 The builder's wilful non-compliance with the Authority's order constitutes a continuing violation under Section 63 of the UP RERA Act, 2016, attracting a daily penalty of ₹10,000 from 09.10.2025 until physical possession is delivered.

6. CONCLUSION & REFERENCE TO PRIOR SUBMISSIONS

6.1 I have already filed comprehensive submissions on the UP RERA portal e.g.

- Copy of Receiving Receipt of Rebuttal to Builder's Response (**Annexure B**)
- Copy of Receiving Receipt of Written Argument (**Annexure C**)
- Copy of Receiving Receipt of Written Argument (**Annexure D**)

6.2 The Respondent-Builder has not only failed to comply with the interim order dated 09.07.2025 but has also misrepresented facts before this Hon'ble Authority in an attempt to frustrate the rights of a genuine homebuyer who paid a premium for F-Block amenities.

6.3 I request the **Hon'ble Authority** to uphold the sanctity of its orders and ensure **immediate justice**.

Enclosures:

Annexure A – Copy of Rera Order- ***Proof of binding direction issued under Sections 38 and 40 of UP RERA Act, 2016*** mandating submission of compliance documents by 24.07.2025 and delivery of physical possession of unit F-1103 by 08.10.2025, establishing the Builder's wilful non-compliance with statutory obligations and rendering their purported cancellation legally untenable.

Annexure B- Copy of Receiving Receipt of Rebuttal to Builder's Response (Dated: 28.08.2025) - ***Proof of timely submission to RERA documenting comprehensive rebuttal of Builder's false claims regarding cancellation***, NOC application, and service of notices, establishing the Complainant's procedural compliance ***with Section 34 of UP RERA Act, 2016 and Rule 24 of UP RERA Rules, 2017 while exposing the Builder's misrepresentations before the Authority.***

Annexure C- Copy of Receiving Receipt of Written Argument (Dated: 25.07.2025) - ***Proof of timely submission to RERA documenting the Builder's non-compliance with the interim order dated 09.07.2025***, establishing the Complainant's adherence to procedural requirements ***under Section 34 of UP RERA Act, 2016 and Rule 24 of UP RERA Rules, 2017 while providing evidentiary foundation for subsequent enforcement proceedings.***

Annexure D- Copy of Receiving Receipt of Written Argument (Dated: 10.05.2024)- ***Proof of timely submission to RERA documenting the Builder's unlawful return of Recovery Certificate issued on 17.03.2023 (Rs. 14,53,215.78)***, establishing the Complainant's compliance with procedural requirements and pursuit ***of legal remedies for enforcement under Section 8 of UP RERA Act, 2016.***

Annexure E-Copy of No Dues Certificate (28/05/2017)- ***Proof that all dues were paid up to this date (95% of Basic Sale Price)***, establishing the absence of any genuine outstanding amount and rendering the Builder's purported cancellation legally ***untenable under Section 18 of UP RERA Act, 2016.***

Annexure F - Last Demand Letter Email and Response (01.02.2024,11.02.2024)- ***Proof of sole valid communication from Builder (contradicting claims of "repeated demands")***, ***establishing legal invalidity of demand due to retrospective due date (31.01.2024) preceding*** communication date (01.02.2024), and demonstrating proper response referencing Recovery Certificate issued on 17.03.2023 for adjustment of alleged dues, which ***Builder deliberately ignored in violation of Rule 7(3) of UP RERA Rules, 2017.***

Annexure G - Copy of Last Demand Letter - ***Proof of invalid service at obsolete address (vacated since 2012)*** despite full payment of 95% Basic Sale Price and prior notification of current address, ***rendering the demand legally untenable under Rule 7(3) of UP RERA Rules, 2017.***

Annexure H - Copy of UPSIC Defaulter News Clippings (Times of India 13.05.2025 & Navbharat Times 30.06.2025)-***Proof of builder's defaulter status with UPSIC, establishing ineligibility to apply for NOC under Regulation 12(3) of UPSID Rules, 2012 and contradicting their false claim of having "applied for NOC" before RERA, thereby constituting contempt under***

Section 38 of UP RERA Act, 2016 and rendering their purported compliance with possession requirements legally untenable.

Annexure I- NOC Not Applied for F Block - Proof from official UPSIC NOC Register showing no application filed by Builder for F-Block, La Galaxia between 01.01.2025 and 09.07.2025 (date of RERA order), contradicting ***their false claim of having "applied for NOC" and establishing contempt under Section 38 of UP RERA Act, 2016***

Annexure J- Copy of Price List (Dated: 16.08.2012) - Proof of premium payment for F-Block amenities as designated in official price list, establishing the Builder's contractual obligation to provide enhanced features which remain undelivered despite full payment (95% of Basic Sale Price), thereby constituting breach of agreement and fraudulent misrepresentation under ***Section 18 of UP RERA Act, 2016.***

Annexure K- Builder's Email (Dated: 01.12.2015)-***Proof of false representation claiming "wooden flooring is on progress"*** when project was demonstrably incomplete, establishing a pattern of deceptive practices ***under Rule 24 of UP RERA Rules, 2017 and constituting contempt under Section 38 of the Act.***

Annexure L- email of home vacant- ***Proof of non-residency at registered address during critical periods***, specifically confirming absence during alleged notice periods when the Builder claims to have served communications, thereby invalidating purported service of ***notices under Rule 7(3) of UP RERA Rules, 2017*** which requires service at the "last known address or email ID of the allottee."

Annexure M- Update to Builder Regarding Address Updating - Proof of formal request dated [Date] for updating current address with Builder, demonstrating their wilful refusal to maintain accurate contact information despite documented requests, ***thereby invalidating subsequent purported notices under Rule 7(3) of UP RERA Rules, 2017 which mandates service at the "last known address or email ID of the allottee."***

Annexure N- Follow Up Communication with Builder - Proof of continued attempts to update address and receive project status, demonstrating Builder's wilful ignorance of current contact details despite documented requests, thereby invalidating purported notices under Rule 7(3) of UP RERA Rules, 2017 which requires service at the "last known address or email ID of the allottee."

Annexure O- Flat Status as on 31.08.2025-***Proof of current project status showing incomplete construction and failure to deliver possession as directed by RERA order dated 09.07.2025***, establishing the Builder's ongoing non-compliance with statutory obligations and rendering their purported cancellation legally untenable

Yours faithfully,

Neeraj Vohra

Complainant

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